U.S. Department of Justice
Federal Bureau of Prisons
Administration Division

Field Acquisition Office
Grand Prairie, Texas 75051

November 10, 2026

Dear Quoter:

Attached is the solicitation package prepared by the Federal Bureau of Prisons, Field Acquisition Office, for the provision of **Food Waste Disposal Services** at the **Federal Correctional Complex (FCC) Victorville, California.** This package contains all necessary information for interested vendors to prepare and submit a quote.

SAM Registration
In accordance with FAR 52.204-7, all quoters must be actively registered in the **System for Award Management (SAM)** at the time of quote submission. Registration must reflect NAICS code 562212. Quotes shall include the quoter's **Unique Entity Identification (UEI)**. The Contracting Officer will verify registration in the SAM prior to award.

Submission of Quotes
Quotes shall be submitted **via email only,** to **llwheeler@bop.gov** no later than the date and time specified therein the solicitation package. The Government's email system timestamp shall be the official time of receipt.

Unacceptable Methods
Submission of quotes by fax, hand-delivery, or any means other than email is **not authorized** and will not be accepted.

Compliance Notice
Failure to provide all required information or failure to comply with the submission instructions contained herein **may result in the quoter being eliminated from award consideration.**

E-Verify Requirement
Pursuant to **FAR 52.222-54,** the selected contractor shall comply with E-Verify requirements by enrolling in E-Verify within **30 calendar days of the contract award** and initiating verification of all new hires within **90 calendar days of enrollment.**

On behalf of the Federal Bureau of Prisons, we appreciate your interest in this requirement and look forward to receiving your submission in accordance with the solicitation instructions.

Respectfully,

LaQueta Wheeler

LaQueta Wheeler
Contracting Officer

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24 AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	41

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			15BGCS27Q61600002	11/10/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (*No collect calls*)	8. OFFER DUE DATE / LOCAL TIME
	LaQueta Wheeler, llwheeler@bop.gov	202-598-6050	11/18/2026 10:00 AM

9. ISSUED BY — CODE 15BGCS
Federal Bureau of Prisons
Field Acquisition Office
U.S. Armed Forces Reserve Complex
346 Marine Forces Drive
Grand Prairie, TX 75051

10. THE ACQUISITION IS
- [X] SMALL BUSINESS
- [ ] HUBZONE SMALL BUSINESS
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- [ ] UNRESTRICTED OR [X] SET ASIDE: 100.00 % FOR
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB)
- [ ] ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- [ ] 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 562111
SIZE STANDARD:

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING
[ ] SEE SCHEDULE		[ ]	14. METHOD OF SOLICITATION: [X] REQUEST FOR QUOTE (RFQ) [ ] INVITATION FOR BID (IFB) [ ] REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE 15B616
Federal Bureau of Prisons
FCC Victorville
13777 AIR EXPRESSWAY BOULEVARD
Victorville, CA 92394

16. ADMINISTERED BY — CODE 15B616
Federal Bureau of Prisons
FCC Victorville
13777 AIR EXPRESSWAY BOULEVARD
Victorville, CA 92394

17a. CONTRACTOR/ OFFEROR — CODE ____ FACILITY CODE ____
TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY — CODE BVIX
Federal Bureau of Prisons
FCC Victorville
PO Box 5400
Adelanto, CA 92301

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	The provision of Food Waste Disposal Services in accordance to the Statement of Work for FCC Victorville. UEI #: _____ EMAIL: _____ Firm Fixed Price See Continuation Sheet(s) (*Use Reverse and/or Attach Additional Sheets as Necessary*)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (*For Government Use Only*)

[X] 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4 ARE ATTACHED. ADDENDA — [X] ARE [ ] ARE NOT ATTACHED

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4 ATTACHED. ADDENDA — [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

[ ] 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____ . YOUR OFFER ON SOLICITATION (BLOCK 5) INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA (*SIGNATURE OF CONTRACTING OFFICER*)

30b. NAME AND TITLE OF SIGNER (*Type or print*)	30c. DATE SIGNED	31b. NAME OF THE CONTRACTING OFFICER (*Type or print*)	31c. DATE SIGNED
		LaQueta Wheeler	

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

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Section B - Supplies or Services and Prices/Costs

SCHEDULE OF SUPPLIES/SERVICES

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ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Food Waste Disposal Services. Effective Date of Award through 12 months from Effective Date of Award. Estimated Maximum. PSC: S205 **Delivery Schedule:** Quantity: 1,200.000000 Delivery Address: Federal Bureau of Prisons FCC Victorville 13777 AIR EXPRESSWAY BOULEVARD Victorville, CA 92394	1,200	TN	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Food Waste Disposal Services. 13 months through 24 months from Effective Date of Award. Estimated Maximum. PSC: S205 **Delivery Schedule:** Quantity: 1,200.000000 Delivery Address: Federal Bureau of Prisons FCC Victorville 13777 AIR EXPRESSWAY BOULEVARD Victorville, CA 92394	1,200	TN	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Food Waste Disposal Services. 25 months through 36 months from Effective Date of Award. Estimated Maximum. PSC: S205 **Delivery Schedule:** Quantity: 1,200.000000 Delivery Address: Federal Bureau of Prisons FCC Victorville 13777 AIR EXPRESSWAY BOULEVARD Victorville, CA 92394	1,200	TN	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004	Food Waste Disposal Services. 37 months through 48 months from Effective Date of Award. Estimated Maximum. PSC: S205	1,200	TN	$_____	$_____

	Delivery Schedule: Quantity: 1,200.000000 Delivery Address: Federal Bureau of Prisons FCC Victorville 13777 AIR EXPRESSWAY BOULEVARD Victorville, CA 92394				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0005	Food Waste Disposal Services. 49 months through 60 months form Effective Date of Award. Estimated Maximum. PSC: S205 **Delivery Schedule:** Quantity: 1,200.000000 Delivery Address: Federal Bureau of Prisons FCC Victorville 13777 AIR EXPRESSWAY BOULEVARD Victorville, CA 92394	1,200	TN	$_____	$_____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0006	Food Waste Disposal Services. Six-Month Extension Option Period. Estimated Maximum. PSC: S205 **Delivery Schedule:** Quantity: 600.000000 Delivery Address: Federal Bureau of Prisons FCC Victorville 13777 AIR EXPRESSWAY BOULEVARD Victorville, CA 92394	600	TN	$_____	$_____

Aggregate Total: $_____ (Base Year Plus all Option Years & 6 Month Extension)

Section C - Description/Specifications/Statement of Work

Clauses By Full Text

Description/Specifications/Statement of Work for Food Waste Disposal Services - FCC Victorville

A. INTRODUCTION:

The Federal Bureau of Prisons (BOP), Field Acquisition Office (FAO), intends to make a single award of an Indefinite Delivery/Requirements type contract with firm-fixed prices, to a responsible contractor who can provide the services in accordance with the stated requirements. This requirement is for the provision of Food Waste Disposal Services for the Federal Correctional Complex (FCC) Victorville, California. General information regarding the Federal Bureau of Prisons and its facilities is located at www.bop.gov**.**

B. PERFORMANCE PERIOD:

The periods of performance of the resulting contract shall be as follows:

1. Base Year - Effective Date of Award through 12 months from Effective Date of Award
2. Option Year 1 - 13 months through 24 months from Effective Date of Award
3. Option Year 2 - 25 months through 36 months from Effective Date of Award
4. Option Year 3 - 37 months through 48 months from Effective Date of Award
5. Option Year 4 - 49 months through 60 months form Effective Date of Award
6. Six-Month Extension.

C. PLACE OF PERFORMANCE:

FCC Victorville
13777 Air Expressway Blvd
Victorville, California 92394

D. PERFORMANCE SCHEDULE AND OPERATIONAL REQUIREMENTS:

1. Regular Collection and Compactor Exchange: The Contractor shall pick up, haul, empty, sanitize, and return a minimum of **two (2) food waste compactors per day**, Monday through Friday, between the hours of 7:30 AM and 3:00 PM. This work shall be performed exclusively outside the secure perimeter at the designated FCC Victorville staging area. Regular daily exchange times shall be mutually agreed upon in writing between the Contractor and the Contracting Officer's Representative (COR).

2. On-Demand and Additional Exchanges: FCC Victorville may require additional compactor exchanges beyond the daily minimum to support institutional needs. Upon receiving notification from the COR, the Contractor shall complete the requested additional exchanges within 24 hours of notice.

3. Inclement Weather Operations: The Contractor shall maintain the regular collection schedule during inclement weather. Any deviations or operational delays requested by the Contractor must receive prior, explicit approval from the Contracting Officer through the COR (Contracting Officer Representative).

4. Holiday Performance Adjustment: The Contractor shall not perform routine collections on Federal Holidays. When a regularly scheduled collection falls on a Federal Holiday, the Contractor shall execute the compactor exchange

immediately the following business day at the regularly scheduled time. This holiday adjustment shall be executed at no additional cost to the government.

E. DESCRIPTION OF WORK, REMOVAL AND DISPOSAL:

1. Logistics and Compactor Exchange: FCC Victorville staff will transport loaded food waste compactors from the secure facility to a designated external staging area daily. The Contractor shall pick up the loaded compactors from this staging area and simultaneously drop off clean, empty compactors. BOP staff will then transport the empty compactors back inside the secure perimeter for daily operational use.

2. Transfer of Ownership and Disposal Liability: Upon picking up a loaded compactor, the Contractor shall immediately assume sole ownership of, and full liability for, all enclosed food waste. The Contractor is solely responsible for transporting, handling, and disposing of all food waste outside of government premises in strict compliance with all applicable local, state, and federal environmental, health, and sanitation laws, codes, and regulations.

3. Landfill and Facility Compliance Certification: The Contractor shall dispose of all waste in a legally and environmentally safe manner. The Contractor must provide the Contracting Officer's Representative (COR) with written documentation and certification verifying that the chosen disposal or landfill facility meets all federal, state, and local regulatory requirements.

4. Waste Volume Estimations: The government estimates a food waste production volume of approximately **1,200 tons per year.** This figure is a non-binding estimate provided for planning purposes only. The government does not guarantee minimum or maximum monthly tonnage, and actual waste quantities will vary based on institutional needs.

5. Mandatory Tonnage Documentation: The Contractor shall provide the COR with official weight tickets, certified scale sheets, or equivalent disposal documentation verifying the exact tonnage of each individual load removed from the facility. This documentation must be submitted with each monthly invoice or within five business days of each disposal exchange.

6. Contractor Transport Liability: The Contractor is solely responsible for ensuring transport vehicles comply with all legal weight limits and cargo securing requirements. FCC Victorville shall not be held liable for any motor vehicle violations, fines, or penalties resulting from overloaded vehicles or falling debris during transport.

F. CONTRACTOR USE OF PREMISES:

1. **Space Limitations and Continuity of Operations:** The Contractor shall restrict operations, material storage, and personnel staging strictly to the designated work areas. The Contractor must maintain the site in a manner that ensures uninterrupted government occupancy and institutional operations. The Contractor shall coordinate all daily service operations and site usage directly with the Contracting Officer's Representative (COR).

2. **Site Access and Visitor Control:** All contractor personnel, subcontractors, and authorized delivery drivers must register with Bureau of Prisons (BOP) officials upon arrival and departure. The Contractor shall strictly prohibit employees from receiving personal visitors, family members, or unauthorized guests on federal property at any time.

3. **Hours of Operation and Scheduling:** The project site is accessible Monday through Friday, excluding Federal Holidays, based on a standard 40-hour workweek.

4. **Work Hours and Secure Perimeter Boundaries:** Exterior Work Hours: Work performed outside the secure perimeter of the institution is strictly restricted to the hours of 7:30 AM to 3:00 PM. No exterior work is permitted between 3:00 PM and 7:30 AM.

5. **Interior Work Absolute Prohibition:** Contractor personnel are strictly prohibited from performing work inside the secure perimeter of the institution at any time.

G. CONTRABAND:

1. Prohibited Items and Site Restrictions: The Contractor shall strictly prohibit employees and subcontractors from introducing or possessing intoxicating beverages, narcotics, illegal drugs, or prescription medications without prior institutional approval, weapons, ammunition, or explosives anywhere on federal property.

2. Electronic Device Restrictions: Cellular telephones, pagers, two-way radios, recording devices, and wireless electronic equipment are strictly prohibited in the staging areas of the institution. All such communication devices must remain secured inside locked personal vehicles or within the designated exterior contractor staging area.

H. CONTRACTOR PERSONNEL AND SECURITY:

1. Security Clearance Exemption:

Because all work under this contract is strictly restricted to areas outside the secure perimeter, contractor personnel are exempt from full institutional background investigations. However, all personnel must pass a standard National Crime Information Center (NCIC) check for gate access and present a valid government-issued photo ID upon entry.

2. Institutional Rules and Employee Standards of Conduct:

Contractor personnel shall strictly adhere to all federal regulations, BOP policies, and institutional security rules. Prohibited actions and mandatory standards include, but are not limited to, the following:

a. **Contraband, Weapons, and Ammunition:** Weapons, ammunition, explosives, and hazardous materials of any kind are strictly prohibited on all federal property, including within personal or commercial vehicles parked in facility lots.

b. **Adult in Custody (AIC) Interaction and Contraband:** Personnel shall not give, sell, trade, or offer any items to AIC. Introducing, transporting, or conveying unauthorized correspondence, electronic media, or written materials into or out of the institution is strictly illegal. Personnel are prohibited from accepting gifts, favors, or gratuities from AIC or AIC associates.

c. Personal Property and Identification: Personnel must secure all unauthorized personal electronics and personal property inside locked personal vehicles or within the designated Contractor lay-down area. A valid, government-issued photo identification card is mandatory for facility entry.

d. Dress Code and Professional Demeanor: Personnel should always wear appropriate professional work attire. Revealing, form-fitting, or culturally inappropriate clothing is strictly prohibited. Personnel must maintain a professional, mature, and alert demeanor while on federal property.

e. Incident Reporting: Personnel shall immediately report any unusual, suspicious, or non-compliant AIC actions, behaviors, or security vulnerabilities directly to BOP correctional staff.

I. CONTRACTOR VEHICLES AND EQUIPMENT:

1. **Vehicle Specifications:** The Contractor shall utilize commercial transport vehicles specifically designed, engineered, and sealed for food waste and organic material collection. Vehicles must strictly prevent any leakage, spillage, blowing, or loss of waste material onto public or facility roadways.
2. **Equipment Sufficiency:** The Contractor shall maintain a fleet of operational vehicles and primary/backup equipment sufficient to execute all requirements of this contract without service interruptions.

J. SANITATION AND COLLECTION AREA CLEANLINESS:

1. **Site Cleanliness and Spillage Mitigation:** The Contractor shall maintain all designated collection and staging areas in a neat, sanitary, and orderly condition. The Contractor shall immediately clean up and collect all food waste, liquids, and debris within a ten (10) foot radius of the compactors, including any pre-existing spillage or waste dropped during the exchange process.

2. **Compactor Sanitation:** The Contractor shall thoroughly wash, rinse, and sanitize the interior and exterior of all compactors prior to returning them to the FCC Victorville staging area to mitigate odors, pests, and bacteria.

3. **Unsegregated Waste Collection:** Food waste will not be segregated by the government prior to collection. The Contractor shall collect the entire contents of the compactor, which consists of commingled organic food waste, wet waste, and general refuse generated by Food Service and other institutional departments.

4. **Scheduling Flexibility and Additional Pulls:** The government reserves the right to alter the regular collection schedule to meet changing institutional needs. Upon notification from the Contracting Officer's Representative (COR), the Contractor shall perform additional compactor exchanges within 24 hours of notice. All additional exchanges shall be billed at the standard flat contract line-item (CLIN) rate; no premium, emergency, or fluctuating surcharges will be accepted.

END OF STATEMENT OF WORK

Section D - Packaging and Marking

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Section E - Inspection and Acceptance

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Section F - Deliveries and Performance

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Section G - Contract Administration Data

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)		
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov		
Clause	Title	Fill-ins (if applicable)
2852.201-70	Contracting Officer's Representative (COR) (NOV 2020)	COR Name: "Maria Baker, Engineering Technician Services" Org: "FBOP, FCC Victorville" Address: "13777 Air Expressway Blvd" Phone: "mbaker@bop.gov or (760) 530-5854" Contract: "the resulting Contract No.,TBD" Period: "one (1) Base Year, Plus Four (4) Option Years and a 6-Month Extension"

Clauses By Full Text

Solicitation Administration Data - Food Waste Disposal Services - FCC Victorville

Type of Contract: The Government contemplates a single award of an indefinite delivery / requirements type contract with firm-fixed unit prices resulting from this solicitation. It is anticipated that the contract resulting from this solicitation will be awarded around **November 2026**, with an anticipated Effective Date of Award (EDOA) of **December 1, 2026**. On or about the EDOA, **FCC Victorville** will issue a delivery/task order to the contractor. The contractor shall commence full performance services on the EDOA.

The quantity of services to be provided by the Contractor is estimated. These estimates are not a representation to a quoter or contractor that the estimated quantities will be required or ordered, or that conditions affecting requirements will remain stable or normal. Contract pricing shall include all charges to the Government for providing the services required by this solicitation.

Pursuant to FAR 17.203(c), the Government's evaluation shall be inclusive of options. The Government will evaluate quotes for award purposes by adding the total price of all options to the total price of the base year requirement. Quoters may offer varying prices for options, depending on the quantities actually ordered and the dates when ordered.

The resulting contract will include a base year from the effective date of award (EDOA) through 12 months from the EDOA with four (4) 12-month option years plus a 6-Month Extension for renewal at the unilateral discretion of the Government. **Quoters are advised that the Government has the unilateral right to exercise option years in accordance with FAR 52.217-9, Option to Extend the Term of the Contract and FAR 52.217-8, Option to Extend Services.**

Performance Period(s): The anticipated Effective Date of Award (EDOA) is as follows:
Base Year: Effective Date of Award through 12 months.
Option Year 1: 13 months from EDOA through 24 months.
Option Year 2: 25 months from EDOA through 36 months.
Option Year 3: 37 months from EDOA through 48 months.
Option Year 4: 49 months from EDOA through 60 months.
6-Month Extension.

Point of Acceptance: The point of acceptance for services is **FCC Victorville** located at **13777 Air Expressway Blvd, Victorville, California 92394.**

Service Contracting Information: This service is a contractual arrangement and not a personnel appointment. Payment is based on the provision of an end product or the accomplishment of a specific task. The service does not constitute an employer/employee relationship. The contractor will not be subject to Government supervision, except for security related matters. However, contractor performance shall be monitored. The contractor shall attend all training required by the Bureau of Prisons for contract workers. The contractor /contractor employee will not be permitted to attend institution meetings, staff recalls or Government training sessions for institution staff.

Reviews: The Contracting Officer or designee is authorized to review by on-site survey, review of records, or by any other reasonable manner, the quality of supplies rendered under this contract. All records shall be subject to be reviewed by the Contracting Officer or other representatives of the BOP.

Contracting Officer Responsibility: Authority to negotiate changes in the terms, conditions, or amounts cited in this contract are reserved to the Contracting Officer. This responsibility, after award, may be delegated to an Administrative Contracting Officer by the Contracting Officer.

Contract Administration Office (CAO): The Contracting Office at **FCC Victorville** is assigned to be the Contracting Administration Office (CAO) for a resulting contract. This assignment carries with it the authority to perform all normal contract administration functions as listed in FAR42.302(a), items 1 through 71; to the extent those functions apply to this contract. This assignment also includes delegation of authority to perform functions specified in FAR 42.302(b), items 1 through 11.

Authorized Ordering Official: Individual delivery/task orders may be issued by any properly warranted Bureau of Prisons (BOP) Contracting Officer, Administrative Contracting Officer (ACO) or an ordering official located at the **FCC Victorville** with an appropriate certificate of appointment. Each Delivery/Task Order will identify the services schedule for that period. Orders can be issued utilizing the following methods: orally, facsimile, mail, or electronic commerce methods. Delivery/Task Orders will take the form of an SF-1449.

Payments will be denied when such service does not support the charges or if the service is deemed not necessary or appropriate. Such determinations may be made by the Contracting Officer or Contracting Officer Representative (COR), whichever is appropriate. All records shall be subject to review by the Contracting Officer or other delegated representatives of the BOP.

Delivery Tickets and Invoices: An itemized invoice shall be submitted on a per month basis and/or upon expiration the contract, whichever occurs first, for all services received during a billing period to include total dollar values and from which payment has not been received.

A proper invoice shall consist of:

Name and address of the contractor.
Contract Number: TBD.
Invoice date and number.
Terms of any discount for prompt payment offered.
Name, title, and phone number of individual(s) to notify in event of defective invoice.
Dates of service with itemized list of services provided

The individual invoice will be paid **once monthly, unless otherwise mutually agreed upon**. The period of discount, if applicable, will commence on the final date of the billing period or the date of the receipt of the invoice for all services accepted during the billing period, whichever is later. An invoice will be considered received on the date it is received by the Financial Management Department.

Invoices are to be submitted to the following address:

FCC Victorville
13777 Air Expressway Blvd
Victorville, California 92394
Attn: Accounting Department / Financial Management
Business Office Email: VIM-BusinessOffice-S@bop.gov

Prices paid for ordered goods/services under this contract shall not exceed the prices set forth in the Schedule of Supplies/Services. Prices charged to the Government shall be equal to or lower than those charged to the Contractor's most favored customers for comparable quantities under similar terms and conditions, including any applicable prompt payment discounts.

Requirements for Security Clearances:
The Contractor will not be subject to Government supervision, except for security related matters and monitoring of contract performance. The following investigative procedures may be applied and appropriate forms completed before any Contractor employees are permitted inside an institution:

(1) National Crime Information Center (NCIC) check.
(2) Declaration of Federal Employment (OF-306).
(3) FD-258 (fingerprint check).
(4) Law Enforcement Agency checks.
(5) Vouchering of Employers.
(6) Employment Resume.
(7) Completed Contractor Pre-employment Questionnaire.
(8) Release of Information.
(9) Questionnaire for Sensitive Positions (SF-85 for Low Risk, SF-85P for above low risk).

(10) Credit Check, if applicable.
(11) Urinalysis, if applicable.

Quoters should also note that clause DOJ-03, Personnel Security Requirements for Contractor Employees (Nov 2021) requires that contractor personnel have a "favorable credit report". **Quoters are strongly encouraged to pre-screen potential candidates for credit issues before submitting the candidate to FCC Victorville.**

By submitting a quote for service, the contractor and its employees agree to complete the required documents and undergo the listed procedures. An individual who does not pass the security clearance will be unable to enter the Bureau facility. Any individual employed by the contractor who is deemed not suitable by the Bureau requirements will not be granted access to perform services under the contract. This is a condition of the contract. Finally, the contractor shall be in compliance with 8 CFR 274a regarding employment of aliens.

System of Records (Privacy Act Notification): The contract will require contracted staff to operate a system of records and maintain documentation that will require adherence to the Privacy Act of 1974. The system of records will be maintained in accordance with community standards for adult health care. The contractor and/ or staff are not authorized to disclose this or any information pertaining to an inmate to any non-Bureau source. Any request for such information shall be forwarded to the Contracting Officer or COR for proper disposition.

Schedule of Insurance:
(a) **Workers' Compensation and Employer's Liability.** Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least $100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers. (See 28.305(c) for treatment of contracts subject to the Defense Base Act.)

(b) **General Liability.** (1) The contracting officer shall require bodily injury liability insurance coverage written on the comprehensive form of policy of at least $500,000 per occurrence. (2) Property damage liability insurance shall be required only in special circumstances as determined by the agency.

(c) **Automobile Liability.** The contracting officer shall require automobile liability insurance written on the comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

Statement of Equivalent Hires: The applicable fill in information for FAR 52.222-42, Statement of Equivalent Hires (May 2014) is as follows:

Refuse Collector, Occupation Code: 99730 - $29.78, plus benefits.

Truckdriver, Heavy, Occupation Code: 31363 - $29.17, plus benefits.

As stated in the contract clause, this is for information purposes only.

Service Contract Labor Standards Wage Determination: The applicable wage determination for this requirement is **WD 2015-5629, Revision 31, Dated 08/27/2026, San Bernardino for FCC Victorville, California**. The current revision of the wage determination is provided as an attachment for informational

purposes only. Orders placed against the BPA will be subject to the version of the wage determination in effect at the time each BPA call is issued.

****This is not a new requirement.** Arakelian Enterprises, Inc. is currently providing Food Waste Disposal Services for **FCC Victorville**.

Section H - Special Contract Requirements

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)		
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov		
Clause	Title	Fill-ins (if applicable)
2852.222-70	Domestic Violence, Sexual Assault, and Stalking (DEC 2014)	
2852.223-70	Unsafe Conditions Due to the Presence of Hazardous Material (NOV 2020)	

Clauses By Full Text

DOJ-05 Security of Department Information and Systems DOJ-05 (OCT 2023)

I. Applicability to Contractors and Subcontractors
Section 2839.102 of the Justice Acquisition Regulation (JAR), (48 C.F.R. § 2839.102), applies to this contract. Accordingly, all contractors are obligated to comply with all applicable DOJ security policies, directives, or guidance documents, including the security requirements in the provisions in this contract clause. This contract clause applies to all contractors and subcontractors, including cloud service providers (“CSPs”), and personnel of the contractors and subcontractors (hereinafter collectively, “Contractor”) that may access, collect, store, process, maintain, use, share, retrieve, disseminate, transmit, or dispose of DOJ Information. The security requirements set forth herein are in addition to those required by the Federal Acquisition Regulation (“FAR”), and any other applicable laws, mandates, contract clauses, DOJ policies, directives or guidance documents and Executive Orders pertaining to the development and operation of Information Systems and/or the protection of Government Information. This clause does not alter or diminish any existing rights, obligations, or liability under any other civil and/or criminal law, rule, regulation, or mandate.
II. General Definitions
The following general definitions apply to this clause. Specific definitions also apply as set forth in other paragraphs.
A. Authorization to Operate (“ATO”), as defined in National Institute of Standards and Technology (“NIST”) Special Publication (“SP”) 800-37 Revision 2, is the official management decision given by a senior Federal official or officials to authorize operation of an information system and to explicitly accept the risk to agency operations (including mission, functions, image, or reputation), agency assets, individuals, other organizations, and the Nation based on the implementation of an agreed-upon set of security and privacy controls.
B. Cloud Computing, as defined in DOJ Order 0904 Cybersecurity Program, is a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This cloud model is composed of five essential characteristics, three service models, and four deployment models in accordance with NIST SP 800-145.
C. Covered Contract is any contract, order or other agreement under which the contractor, or a subcontractor at any tier, including a cloud service provider, may access, collect, store, process, maintain, use, share, retrieve, disseminate, transmit, or dispose of DOJ Information (as defined below) in the course of providing a product or service to the Department, with the exception of acquisitions under the micro-purchase threshold.
D. Covered Information System means any information system used for, involved with, or allowing, the processing, storing, or transmitting of DOJ Information under a Covered Contract.

E. Data means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data, computer software, and personally identifiable information (PII) (defined below). The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

F. DOJ Information, as defined in DOJ Order 0904, means any Information that is owned, produced, controlled, protected by, or otherwise within the custody or responsibility of the DOJ, including, without limitation, information related to DOJ programs or personnel. It includes, without limitation, Information (1) provided by or generated for the DOJ, (2) managed or acquired by the Contractor for the DOJ in connection with the performance of the contract, and/or (3) acquired to perform the contract.

G. Information, as defined in DOJ Order 0904, is any communication or representation of knowledge such as facts, data, or opinions, in any form or medium, including textual, numerical, graphic, cartographic, narrative, or audiovisual. This includes any communication or representation of knowledge in an electronic format that allows it to be stored, retrieved, or transmitted.

H. Information System, means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502(8)).

I. Personally Identifiable Information ("PII"), as defined in the FAR 24.101, means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. It includes but is not limited to common data elements such as names, addresses, dates of birth, and places of employment, to identity documents, Social Security numbers or other government-issued identifiers, precise location information, medical history, and biometric records. This definition covers all PII that is created by or becomes available to the contractor, including its employees, subcontractors, or affiliates, as a result of performing under this contract. PII, as supplementally defined in DOJ Order 0904, also includes information about an individual maintained by an agency, including, but not limited to, information related to education, financial transactions, medical history, and criminal or employment history and information, which can be used to distinguish or trace an individual's identity.

J. Private Cloud, as defined in NIST SP 800-145, is the deployment model for cloud infrastructure provisioned for exclusive use by a single organization comprising multiple consumers (e.g., business units). It may be owned, managed, and operated by the organization, a third party, or some combination of them, and it may exist on or off premises.

K. Security Breach means any security incident (as defined below) that directly relates to the loss of control, compromise, exfiltration, manipulation, unauthorized disclosure, unauthorized acquisition, unauthorized exposure or unauthorized access or any similar occurrence of any Covered Information System or any DOJ Information or any PII accessed by, retrievable from, processed by, stored on, or transmitted within, to or from any such system. This includes incidents where (1) a person other than an authorized user accesses or potentially accesses PII or DOJ Information or (2) an authorized user accesses or potentially accesses PII or DOJ Information for an unauthorized purpose.

a. Potential Security Breach (hereinafter, "Potential Breach") means any suspected, but unconfirmed security breach (as defined above).

b. Confirmed Security Breach (hereinafter, "Confirmed Breach") means any confirmed security breach (as defined above).

L. Security Incident means any occurrence that (1) may actually or imminently jeopardize, without lawful authority, the availability, integrity, authentication, confidentiality, or nonrepudiation of DOJ Information or a Covered Information System; or (2) may constitute a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

a. Potential Security Incident means any suspected, but unconfirmed security incident (as defined above).

b. Confirmed Security Incident means any confirmed security incident (as defined above).

M. Vulnerability, as defined in DOJ Vulnerability Management Plan, and the OCIO Information Security Management Procedure, means a weakness or flaw discovered in the design of a system that, when exploited, may result in a loss of confidentially, integrity, or availability of DOJ Information or an Information System.

III. Confidentiality and Non-Disclosure of DOJ Information

A. Preliminary and final contract deliverables and all associated working papers and material generated by the Contractor developed using DOJ Information, product, source code, and/or methods of operations, are the property of the U.S. Government and must be submitted to the Contracting Officer ("CO") or the CO's Representative ("COR") at the conclusion of the contract. The U.S. Government has unlimited data rights to all such deliverables and associated working papers and materials in accordance with FAR 52.227-14 (Rights in Data-General). The Contractor will define a method of monitoring the development activity to include any activity associated with DOJ Information, product, source code, and methods of operations. The data rights and development details shall be defined within the Contract.

If the Contractor intends to utilize its existing data, for which it has a patent or copyright, to develop a contract deliverable, it is incumbent upon the Contractor to negotiate with the CO the proper FAR Part 27 clauses in the contract to protect its existing data.

B. Pursuant to FAR 52.227-14(d)(2), all documents and data produced in the performance of this contract containing DOJ Information, product code, source code, and/or methods of operations are the property of the U.S. Government and,

without the prior written permission of the CO, the Contractor shall neither reproduce nor release such information to any third-party at any time, including during performance or following expiration and/or termination of the contract.
C. Any DOJ Information made available to the Contractor under this contract shall be used only for the purpose of performance of this contract and shall not be divulged or made known in any manner to any persons except as may be necessary in the performance of this contract. In performance of this contract, the Contractor assumes responsibility for the protection of the confidentiality of all DOJ Information processed, stored, or transmitted by the Contractor. The Contractor shall comply with information security responsibilities and duties throughout the contract and after expiration/ termination as appropriate per contract close-out activities. When requested by the CO (typically no more than annually), the Contractor shall provide a report to the CO identifying, to the best of the Contractor's knowledge and belief, the type, amount, and level of sensitivity of the DOJ Information processed, stored, or transmitted under the Contract, including an estimate of the number of individuals for whom PII has been processed, stored or transmitted under the Contract and whether such information includes social security numbers (in whole or in part).

IV. Compliance with Information Technology Security Policies, Procedures and Requirements
A. For all Covered Information Systems, in addition to any other applicable requirements, as set forth in Part I, the Contractor shall comply with the security requirements of the Federal Information Security Modernization Act of 2014 ("FISMA"), Privacy Act of 1974, E-Government Act of 2002, National Institute of Standards and Technology ("NIST") Special Publications ("SP"), including NIST SP 800-37, 800-53, and 800-60 Volumes I and II, Federal Information Processing Standards ("FIPS") Publications 140-2, 199, and 200, Federal Risk and Authorization Management Program ("FedRAMP"), DOJ IT Security Standards as amended, and OMB Memoranda relating to the security of information and/ or Federal Information Systems.
B. In addition, for all Covered Information Systems, the Contractor shall comply with the following requirements, which are listed here only to highlight certain specific applicable requirements from one of the sources identified in the first paragraph of this Section. This is not an exhaustive list of all such requirements with which the Contractor is obligated to comply, and the omission of a requirement from this list should not be construed as negating the materiality of that requirement. These requirements and those in the authorities in the prior paragraph should be read together.
1. Limiting access to DOJ Information and Covered Information Systems to authorized users and to transactions and functions that authorized users are permitted to exercise.
2. Providing security awareness training at least annually to all Contractor employees and contractors involved with the Covered Contract. Such training shall include, but not be limited to, recognizing and reporting potential indicators of insider threats to users and managers of DOJ Information and Covered Information Systems.
3. Creating, protecting, and retaining, in accordance with applicable requirements but in any event at least until the expiration of the contract, Covered Information System audit records, reports, and supporting documentation to enable reviewing, monitoring, analysis, investigation, reconstruction, and reporting of unlawful, unauthorized, or inappropriate activity related to such Covered Information Systems and/or DOJ Information.
4. Maintaining authorizations to operate any Covered Information System.
5. Performing continuous monitoring on all Covered Information Systems, to include but not be limited to, collecting, reviewing, and analyzing appropriate logs and timely investigating security alerts and potential security incidents.
6. Establishing and maintaining baseline configurations and current inventories of Covered Information Systems, including hardware, software, firmware, and documentation, throughout the Information System Development Lifecycle, and establishing and enforcing security configuration settings for IT products employed in Covered Information Systems.
7. Ensuring appropriate contingency planning has been performed, including DOJ Information and Covered Information System backups.
8. Identifying Covered Information System users, processes acting on behalf of users, or devices, and authenticating and verifying the identities of such users, processes, or devices, using multifactor authentication or HSPD-12 compliant authentication methods as defined by NIST 800-63-3, Digital Identity Guidelines or current revision.
9. Establishing and maintaining an operational incident handling capability for Covered Information Systems that includes adequate and timely development, logging, detection, analysis, containment, recovery, and user response activities, and tracking, documenting, and timely reporting incidents to appropriate officials and authorities within the Contractor's organization and the DOJ.
10. Performing periodic and timely maintenance on Covered Information Systems, and providing effective controls on tools, techniques, mechanisms, and personnel used to conduct such maintenance.
11. Protecting Covered Information System media containing DOJ Information, including paper, digital and electronic media, and DOJ assets under Contractor control; protecting them from environmental impacts, access, and equipment positioning requirements defined; limiting access to DOJ Information to authorized users; and sanitizing or destroying Covered Information System media containing DOJ Information before disposal, release or reuse of such media.
12. Limiting physical access to Covered Information Systems, equipment, and physical facilities housing such Covered Information Systems to authorized personnel according to DOJ 03.
13. Screening individuals prior to authorizing access to Covered Information Systems to ensure compliance with DOJ Security standards including personnel background checks.

14. Continuously assessing the risk to DOJ Information in Covered Information Systems, including scanning and remediating vulnerabilities, or implementing appropriate mitigation in accordance with DOJ policy, and ensuring the timely removal of assets no longer supported by the Contractor.
15. Continuously monitoring the application of security controls of Covered Information Systems, assessing the efficacy of such controls, and developing and implementing plans of action designed to correct deficiencies and eliminate or reduce vulnerabilities in such Covered Information Systems.
16. Monitoring, controlling, and protecting information transmitted or received by Covered Information Systems at the external boundaries and key internal boundaries of such Covered Information Systems, and employing architectural designs, software development techniques, and systems engineering principles that promote effective security.
17. Identifying, reporting, and correcting Covered Information System security flaws in a timely manner, providing protection from malicious code at appropriate locations, monitoring security alerts and advisories and taking appropriate and timely action in response.
18. Ensuring return of Government Furnished Equipment ("GFE") and/or PIV card assets within 10 business days of notification for end of use (contract end, staff change, etc.).
19. Complying with rights in data (FAR 52.227-14) as to the development, management, and protection of DOJ Information.
20. Reporting on risks or known issues impacting DOJ Services (staffing, hardware, process, changes, etc.) through the Contractor's CO or COR, DOJ Service Owner ("SO"), and Government Technical Manager ("GTM") including risk mitigation activities.
21. Reporting through the Contractor's CO or COR on any projected or planned changes in corporate ownership, covered information system design, and/or any technical changes that could impact the confidentiality, integrity or availability of DOJ Information, data, or systems. Changes to system design must be updated through the authorization process per NIST SP 800-37 Revision 2, Step 6 ('Continuous Monitoring") or current NIST revision.
22. When, as part of operating within the DOJ environment, the Contractor's covered information system is subject to review, audit, or assessment by third parties, facilitating DOJ access to information system resources, facilities, personnel, and documentation in a timely manner as required by the auditors. Should a third-party organization conduct a review of any Covered Information System, the Contractor must provide a copy of the report to DOJ, through the CO and COR.
23. Completing an attestation that meets OMB Memorandum M-22-18 for software procurements following the template attestation form developed by NIST. The attestation form must be returned to the CO and COR for sharing with the component Chief Information Officer (CIO).
24. Reporting on outages impacting DOJ Services through the Contractor's CO, COR, and DOJ Service Owner (SO) to include event and mitigation details.

C. The Contractor shall not process, store, or transmit DOJ Information using a Covered Information System without first obtaining an ATO for each Covered Information System. The ATO shall be signed by the Authorizing Official for the DOJ component responsible for maintaining the security, confidentiality, integrity, and availability of the DOJ Information under this contract. (For Cloud Computing Systems, see Section V, below.)

D. The Contractor shall ensure compliance with DOJ-03 (Personnel Security Requirements for Contractor Employees) as to all Covered Information Systems.

E. When requested by the DOJ CO or COR as described below, the Contractor shall provide DOJ, including the Office of Inspector General ("OIG") and Federal law enforcement components, (1) access to any and all information and records, including electronic information, regarding a Covered Information System, and (2) physical access to the Contractor's facilities, installations, systems, operations, documents, records, and databases. Such access may include independent validation testing of controls, system penetration testing, and FISMA data reviews by DOJ or agents acting on behalf of DOJ, and such access shall be provided within 72 hours of the request. Additionally, the Contractor shall cooperate with DOJ's efforts to ensure, maintain, and safeguard the security, confidentiality, integrity, and availability of DOJ Information.

F. The use of Contractor-owned laptops or other portable digital or electronic media to process or store DOJ Information covered by this clause or access a Covered Information System is prohibited unless the CO approves it in writing after the Contractor has provided a letter certifying compliance with the following requirements. For any requirements which include the use or storage of PII, the Senior Component Official for Privacy must also approve. Any additional requirements set forth for the use or storage of PII under DOJ-02, Contractor Privacy Requirements, are in addition to, not superseded by, the requirements set forth here.

1. Media must be encrypted using a NIST FIPS 140-2 approved product.
2. The Contractor must develop and implement a process to ensure that security and other applications software is kept up to date.
3. Where applicable, media must utilize antivirus software and a host-based firewall mechanism.
4. The Contractor must log all computer-readable data extracts from databases holding DOJ Information and verify that each extract including such data has been erased within 90 days of extraction or that its use is still required. All DOJ Information should be treated by the Contractor as sensitive information unless specifically designated as non-sensitive by the DOJ.

5. A Rules of Behavior (ROB) form must be signed and acknowledged annually by users. These rules must address, at a minimum, authorized, and official use, prohibition against unauthorized users and use, and the protection of DOJ Information. The form also must notify the users that they have no reasonable expectation of privacy regarding any communications transmitted through or data stored on Contractor-owned laptops or other portable digital or electronic media.

6. Cybersecurity Awareness Training (CSAT) shall be provided annually by Contractor for all users of Covered Information System. This training must be submitted to, and approved by, the CO or COR in advance of being provided to users. Users must complete and acknowledge having received CSAT each year. At a minimum, CSAT provided by contractors must include:

a. Insider Threat Detection and Reporting – Importance of detecting, methodologies, indicators, and reporting

b. Privacy Awareness – Privacy Act and PII

c. General Cybersecurity – Information security, trends in advance persistent threats, social engineering/phishing, appropriate use, mobile devices, remote access, basic security best practices

G. Contractors shall not store DOJ information on Contractor-owned removable IT (e.g., media such as a thumb drive or external hard drive) unless expressly authorized in writing by the DOJ CO or COR in the performance of their contract.

H. When no longer needed, all media must be processed (sanitized, degaussed, or destroyed) in accordance with NIST SP 900-88, Guidelines for Media Sanitization.

I. The Contractor must keep an accurate inventory of digital or electronic media used in the performance of DOJ contracts.

J. The Contractor must remove all DOJ Information from Contractor media and return all such information to the DOJ within 10 days of the expiration or termination of the contract, unless otherwise extended by the CO, or waived (in part or whole) by the CO, and all such information shall be returned in a format and form acceptable to DOJ. The Contractor shall provide a written certification certifying the removal and return of all such information to the CO within 10 business days of the removal and return of all DOJ Information.

K. DOJ, at its discretion, may suspend the Contractor's access to any DOJ Information, or terminate the contract, when DOJ suspects that the Contractor has failed to comply with any security requirement, or in the event of an Information System Security Incident or Security Breach (see definitions above), where the Department determines that either event gives cause for such action. The suspension of access to DOJ Information may last until such time as DOJ, in its sole discretion, determines that the situation giving rise to such action has been corrected or no longer exists. Any termination action taken because of the Contractor's suspected failure to comply with any security requirement will be conducted in accordance with the applicable termination clause governing the awarded contract. The Contractor understands that any suspension or termination in accordance with this provision shall be at no cost to DOJ, and that upon request by the CO, the Contractor must immediately return all DOJ Information to DOJ, as well as any media upon which DOJ Information resides, at the Contractor's expense. The Contractor must comply with FAR 52.227-14 (Rights in Data), FAR 52.245-1 (Government Property), DOJ 2400.3A Chapter 1 (component property procedures), and FAR 4.804-5(a)(6) (Procedures for closing out contract files).

V. Cloud Computing

A. The Contractor may not utilize the Cloud system of any Cloud Service Provider ("CSP") unless:

1. All of the following has occurred: (a) the Cloud system and CSP have been evaluated by a Third Party Assessing Organization ("3PAO") certified under FedRAMP; (b) the Cloud system received FedRAMP authorization; (c) the Contractor has provided the most current System Security Plan ("SSP") and Security Assessment Report ("SAR") to the DOJ CO for consideration, and provides any subsequent SSPs and SARs within 30 days of issuance; and, (d) the Authorizing Official for the DOJ component responsible for maintaining the security confidentiality, integrity, and availability of the DOJ Information under the Covered Contract has issued an ATO; or,

2. In cases where the CSP or its offering is not FedRAMP authorized, the COR approves utilization of the Cloud System after the CSP has worked with the authorizing official, the DOJ OCIO, and the FedRAMP Program Management Office to determine that the CSP is likely to seek and receive Agency/FedRAMP authorization within 1 year, or DOJ has authorized use as a Private Cloud or Contractor Owned, Contractor Operated system.

B. The Contractor must ensure that the CSP allows DOJ to access and retrieve any DOJ Information processed, stored, or transmitted in a Cloud system under this Contract within a reasonable time of any such request, but in no event less than 48 hours from the request. To ensure that the DOJ can fully and appropriately search and retrieve DOJ Information from the Cloud system, access shall include any schemas, meta-data, and other associated data artifacts.

C. The Contractor must ensure that the CSP provides access and information to support and enable DOJ's cloud security posture management, to include the current inventory of security management configuration data for services and information to confirm the Contractor has been monitoring accounts for compliance with security requirements. The DOJ Justice Security Operations Center (JSOC) must be able to access logs and events to investigate potential security breaches and perform security posture assessments associated with the Security Audit Identity Credential Access Management (ICAM) policies.

D. The Contractor must ensure that the CSP provides evidence of annual recertification of privileged user access management.

E. A Supply Chain Risk Management (SCRM) review is mandatory for specified acquisitions in accordance with established process in EO 14028 and NIST SP 800-161, Cybersecurity Supply Chain Risk Management Practices for Systems and Organizations, or superseding document. All vendor products and solutions to be used on DOJ national security systems, enterprise-wide systems, or new FIPS-199 High and Moderate systems for the purpose of accessing, collecting, storing, processing, maintaining, using, sharing, retrieving, disseminating, transmitting, or disposing of DOJ Information must be submitted to DOJ OCIO for a Supply Chain Risk Management review prior to contract award or ATO signature. Changes in corporate ownership or structure shall be reported to the CO for referral to SCRM. The Contractor shall notify the CO of any confirmed Supply Chain compromise affecting the Contractor's products or services within 1 hour of discovery.

_____ The following SCRM requirements for acquisition of systems, hardware, or software which will be used in systems that are mission critical or process sensitive data apply to this award. (CO check as appropriate in coordination with the Program Manager and/or System Owner)

1. The Contractor shall develop and deliver a SCRM Plan. The SCRM Plan shall meet the format described in NIST SP 800-161, Appendix E. The SCRM plan shall address the following security controls from NIST SP 800-53 Rev 5: SR-2, SR-3, SR-4, SR-5, SR-6, SR-7, SR-8, SR-9, SR-10, and SR-11. Equivalent ISO 27000 series controls may be used if they are mapped to the NIST control(s).
2. The Contractor shall implement the required security controls as documented in the SCRM Plan. The requirements of the SCRM plan shall flow down to all subcontractors. Evidence of the certification and compliance is required.
3. The Contractor shall provide evidence of compliance with the documented SCRM Plan. (CO select which applies)

_____ Self-assessment by a contractor security team

_____ External assessment by an independent auditor

VI. Information System Security Incident or Security

A. Confirmed Security Incident. The Contractor shall immediately (and in no event later than 1 hour of discovery) report any Confirmed Security Incident to the DOJ CO and COR. If the Confirmed Security Incident occurs outside of regular business hours and/or neither the DOJ CO nor the COR can be reached, the Contractor must call JSOC at 1-202-357-7000 immediately (and in no event later than within 1 hour of discovery of the Confirmed Security Incident) and shall notify the CO and COR as soon as practicable.

B. Potential Security Incident.

1. If the Contractor suspects that DOJ information has been potentially disclosed or impacted, the Contractor shall promptly investigate to determine if a Security Incident has occurred. If the Contractor has not determined within 24 hours (i.e., 24 hours from detection of potential security incident and/or security breach) whether the Potential Security Incident was in fact a Security Incident, then it must immediately report the Potential Security Incident to the DOJ CO and the COR. If the time by which to report the Potential Security Incident occurs outside of regular business hours and/or neither the DOJ CO nor the COR can be reached, the Contractor must call or e-mail the JSOC Team at 1-202-357-7000 or JSOC@USDOJ.GOV and contact the DOJ CO and COR as soon as practicable. If the contract involves PII, the Contractor must comply with the notification requirements of DOJ-02 and Executive Order M-17-12 (Memorandum on Preparing for and Responding to a Breach of Personally Identifiable Information), Contractor Privacy Requirements, Section B.5, for an actual or suspected Security Incident.
2. The Contractor must limit sharing of Security Incident details to only those individuals involved in responding to the potential Security Incident. Any provisions of the Covered Contract regarding the citizenship or location of individuals working on the Covered Contract apply equally to individuals involved in responding to any potential Security Incidents. The Contractor may request assistance from the JSOC for advice, incident response, or FBI coordination. The Contractor must provide weekly updates to CO, COR and JSOC during the course of a Security Incident investigation.

C. Any report submitted in accordance with paragraphs (B) and (C), above, shall identify:

1. Both the Covered Information Systems and DOJ Information involved or at risk, including the type, amount, and level of sensitivity of the DOJ Information and, if the DOJ Information contains PII, the estimated number of unique instances of PII.
2. All steps and processes being undertaken by the Contractor to minimize, remedy, and/or investigate the Security Incident.
3. Any and all other information as required by the CISA Federal Incident Notification Guidelines, including the functional impact, information impact, impact to recoverability, threat vector, mitigation details, and all available incident details; and The Contractor may request assistance from the JSOC Team for advice, incident response, or FBI coordination, and must provide weekly updates to CO, COR, and JSOC during the course of an Incident investigation.

D. Except as otherwise required by Federal, State and local laws, executive orders, rules and regulations, all determinations regarding whether and when to notify other individuals and/or federal agencies potentially affected by a Security Incident will be made by DOJ senior officials, the DOJ Core Management Team, or the COR at DOJ's discretion.

E. The Contractor must provide to DOJ full access to any facility and/or Covered Information System affected or potentially affected by any potential or confirmed Security Incident, including access by the DOJ OIG and federal law enforcement organizations, and undertake any and all response actions DOJ determines are required to ensure the

protection of DOJ Information, including providing all requested images, log files, and event information to facilitate rapid resolution of any Security Incident.

F. DOJ, at its sole discretion, may obtain, and the Contractor will permit, the assistance of other federal agencies and/or third-party contractors or firms to aid in response activities related to any potential or confirmed Security Incident. Additionally, DOJ, at its sole discretion, may require the Contractor to retain, at the Contractor's expense, a 3PAO acceptable to DOJ, with expertise in incident response, compromise assessment, and federal security control requirements, to conduct a thorough vulnerability and security assessment of all affected Covered Information Systems.

G. Response activities related to any Security Incident undertaken by DOJ, including activities undertaken by the Contractor, other federal agencies, and any third-party contractors or firms at the request or direction of DOJ, may include inspections, investigations, forensic reviews, data analyses and processing, and final determinations of responsibility for the Security Incident and/or liability for any additional response activities. The Contractor shall be responsible for all costs and related resource allocations required for all such response activities related to any Security Incident, including the cost of any penetration testing.

VII. Pass-Through of Security Requirements to Subcontractors and CSPs

A. The requirements set forth in the preceding paragraphs of this clause apply to all subcontractors and CSPs who perform work in connection with the contract, including any CSP providing services for any other CSP under the contract, and the Contractor shall flow down this clause to all subcontractors and CSPs performing under this contract. Any breach by any subcontractor or CSP of any of the provisions set forth in this clause will be attributed to the Contractor.

(End of Clause)

Section I - Contract Clauses

Clauses By Reference

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)		
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov		
Clause	Title	Fill-ins (if applicable)
52.203-6 Alt I	Restrictions on Subcontractor Sales to the Government (Jun 2020) - Alternate I (Nov 2021)	
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)	
52.204-13 (DEV)	System for Award Management-Maintenance (Oct 2018) (DEVIATION NOV 2025)	
52.209-6 (DEV)	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) (DEVIATION NOV 2025)	
52.209-10 (DEV)	Prohibition on Contracting With Inverted Domestic Corporations (Nov 2015) (DEVIATION NOV 2025)	
52.212-4 (DEV)	Terms and Conditions-Commercial Products and Commercial Services (Nov 2023) (DEVIATION NOV 2025)	
52.216-18	Ordering (Aug 2020)	(a)From Date: "the first day of the current option year" (a)To Date: "the last day of the current option year"
52.216-19	Order Limitations (Oct 1995)	(a): "deliverable, as identified in Schedule of Services" (b)(1): "the estimated quantities in the Schedule of Items within the current option year"

Clause	Title	Fill-ins (if applicable)
		(b)(2): "the estimated quantities in the Schedule of Items, within the current option year" (b)(3): " 30" (d): " 5"
52.216-21 (DEV)	Requirements (Oct 1995) (DEVIATION DEC 2025)	(f): "the last day of the effective option year"
52.217-8	Option to Extend Services (Nov 1999)	Period of Time: "60 days"
52.217-9	Option to Extend the Term of the Contract (Mar 2000)	(a) Period of Time: "60 days" (a) Days: "60" (c): "5 years"
52.219-6 (DEV)	Notice of Total Small Business Set-Aside (Nov 2020) (DEVIATION DEC 2025)	
52.219-8 (DEV)	Utilization of Small Business Concerns (Jan 2025) (DEVIATION DEC 2025)	
52.219-14 (DEV)	Limitations on Subcontracting (Oct 2022) (DEVIATION DEC 2025)	(f)(1) End of Base Term: "X"
52.222-3 (DEV)	Convict Labor (June 2003) (DEVIATION DEC 2025)	
52.222-19 (DEV)	Child Labor-Cooperation with Authorities and Remedies (Jan 2025) (DEVIATION MAR 2026)	
52.222-35 (DEV)	Equal Opportunity for Veterans (Jun 2020) (DEVIATION DEC 2025)	
52.222-36 (DEV)	Equal Opportunity for Workers with Disabilities (Jun 2020) (DEVIATION DEC 2025)	
52.222-37 (DEV)	Employment Reports on Veterans (Jun 2020) (DEVIATION DEC 2025)	
52.222-40 (DEV)	Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (DEVIATION DEC 2025)	
52.222-41 (DEV)	Service Contract Labor Standards (Aug 2018) (DEVIATION DEC 2025)	

Clause	Title	Fill-ins (if applicable)
52.222-50 (DEV)	Combating Trafficking in Persons (Oct 2025) (DEVIATION DEC 2025)	
52.222-54 (DEV)	Employment Eligibility Verification (Jan 2025) (DEVIATION DEC 2025)	
52.222-90	Addressing DEI Discrimination by Federal Contractors (APR 2026)	
52.224-3	Privacy Training (Jan 2017)	
52.225-5	Trade Agreements (Nov 2023)	
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving (May 2024)	
52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)	
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)	
52.233-3 (DEV)	Protest after Award (Aug 1996) (DEVIATION NOV 2025)	
52.233-4 (DEV)	Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION NOV 2025)	
52.240-91 (DEV)	Security Prohibitions and Exclusions (DEVIATION NOV 2025)	
2852.212-4	Contract Terms and Conditions, Commercial Products and Commercial Services (FAR Deviation) (OCT 2026)	

Clauses By Full Text

BOP 2852.242-71 EVALUATION OF CONTRACTOR PERFORMANCE UTILIZING CPARS (APR 2011)

The services, although not directly supervised, shall be reviewed by Federal Bureau of Prisons (BOP) staff to ensure contract compliance. The contractor's performance will be evaluated in accordance with FAR 42.15. Contract monitoring reports will be prepared by the Contacting Officer's Representative (COR) and maintained in the contract file.

In accordance with FAR 42.1502 and 42.1503, agencies shall prepare an evaluation of contractor performance and submit it to the Past Performance Information Retrieval System (PPIRS). The BOP utilizes the Department of Defense (DOD) web-based Contractor Performance Assessment Reporting System (CPARS) to provide contractor performance evaluations. The contractor shall provide and maintain a current e-mail address throughout the life of the contract. The contractor will receive an e-mail from the Focal Point thru the following website addresswebptsmh@navy.milwhen the contract is registered in CPARS. The e-mail will contain a "user ID" and temporary password to register in the CPARS system. The contractor must be registered to access and review its evaluation and/or provide a response. If assistance is required when registering, please contact the Contracting Staff/Focal Point.

(End of Clause)

DOJ-01 Whistleblower Information Distribution (Oct 2021)

Within 30 days of contract award, the contractor and its subcontractors must distribute the “Whistleblower Information for Employees of DOJ Contractors, Subcontractors, Grantees, or Sub-Grantees or Personal Services Contractors” (“Whistleblower Information”) document to their employees performing work in support of the products and services delivered under this contract (https://oig.justice.gov/sites/default/files/2020-04/NDAA-brochure.pdf). By agreeing to the terms and conditions of this contract, the prime contractor acknowledges receipt of this requirement, in accordance with 41 U.S.C. § 4712 and FAR 3.906 & 52.203-17, and commits to distribution. Within 45 days of award, the contractor must provide confirmation to the contracting officer verifying that it has distributed the whistleblower information as required.

(End of Clause)

DOJ-02 Contractor Privacy Requirements (JAN 2022)

A. Limiting Access to Privacy Act and Other Sensitive Information

(1) Privacy Act Information

In accordance with FAR 52.224-1 Privacy Act Notification (APR 1984) and FAR 52.224-2 Privacy Act (APR 1984), if this contract requires Contractor personnel to have access to information protected by the Privacy Act of 1974, the contractor is advised that the relevant DOJ system of records notices (SORNs) applicable to this Privacy Act information may be found at https://www.justice.gov/opcl/doj-systems-records.[1] Applicable SORNs published by other agencies may be accessed through those agencies’ websites or by searching the Federal Digital System (FDsys) available at http://www.gpo.gov/fdsys/. SORNs may be updated at any time.

(2) Prohibition on Performing Work Outside a Government Facility/Network/Equipment

Except where use of Contractor networks, IT, other equipment, or Workplace as a Service (WaaS) is specifically authorized within this contract, the Contractor shall perform all tasks on authorized Government networks, using Government-furnished IT and other equipment and/or WaaS and Government information shall remain within the confines of authorized Government networks at all times. Any handling of Government information on Contractor networks or IT must be approved by the Senior Component Official for Privacy of the component entering into this contract. Except where remote work is specifically authorized within this contract, the Contractor shall perform all tasks described in this document at authorized Government facilities; the Contractor is prohibited from performing these tasks at or removing Government-furnished information to any other facility; and Government information shall remain within the confines of authorized Government facilities at all times. Contractors may only access classified materials on government furnished equipment in authorized government owned facilities regardless of remote work authorizations.

(3) Prior Approval Required to Hire Subcontractors

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (Subcontractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under or relating to this contract. The Contractor (and any Subcontractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

(4) Separation Checklist for Contractor Employees

The Contractor shall complete and submit an appropriate separation checklist to the Contracting Officer before any employee or Subcontractor employee terminates working on the contract. The Contractor must submit the separation checklist on or before the last day of employment or work on the contract. The separation checklist must verify: (1) return of any Government-furnished equipment; (2) return or proper disposition of personally identifiable information (PII)[2], in paper or electronic form, in the custody of the employee or Subcontractor employee including the sanitization of data on any computer systems or media as appropriate; and (3) termination

of any technological access to the Contractor's facilities or systems that would permit the terminated employee's access to PII or other sensitive information.

In the event of adverse job actions resulting in the dismissal of a Contractor or Subcontractor employee before the separation checklist can be completed, the Prime Contractor must notify the Contracting Officer within 24 hours and confirm receipt of the notification. In the case the Contractor is unable to notify the Contracting Officer, then the Contractor should notify the Contract Officer's Representative (COR).

Contractors must complete the separation checklist with the Contracting Officer or COR by returning all Government-furnished property including, but not limited to, computer equipment, media, credentials and passports, smart cards, mobile devices, Personal Identity Verification (PIV) cards, calling cards, and keys and terminating access to all user accounts and systems. Unless the Contracting Officer requests otherwise, the relevant Program Manager or other Key Personnel designated by the Contracting Officer or COR may facilitate the return of equipment.

B. Privacy Training, Safeguarding, and Remediation

(1) Required Security and Privacy Training for Contractors

The Contractor must ensure that all employees take appropriate privacy training, including Subcontractors who have access to PII as well as the creation, use, dissemination and/or destruction of PII at the outset of the employee's work on the contract and every year thereafter. Training must include procedures on how to properly handle PII, including heightened security requirements for the transporting or transmission of sensitive PII, and reporting requirements for a suspected breach or loss of PII. These courses, along with more information about DOJ security and training requirements for Contractors, are available at https://www.justice.gov/jmd/learndoj. The Federal Information Security Modernization Act of 2014 (FISMA) requires all individuals accessing DOJ information to complete training on records management, cybersecurity awareness, and information system privacy awareness. Contractor employees are required to sign the "Privacy Rules of Behavior," acknowledging and agreeing to abide by privacy law, policy, and certain privacy safeguards, prior to accessing DOJ information. These Rules of Behavior are made available to all new users of DOJ's computer network and to trainees at the conclusion of DOJ-OPCL-CS-0005.

The Contractor should maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required privacy and cybersecurity training.

(2) Safeguarding PII Requirements

Contractor employees must comply with DOJ Order 0904 and other guidance published to the publicly-available Office of Privacy and Civil Liberties (OPCL) Resources page[3] relating to the safeguarding of PII, including the use of additional controls to safeguard sensitive PII (e.g., the encryption of sensitive PII). This requirement flows down from the Prime Contractor to all Subcontractors and lower tiered subcontracts.

(3) Non-Disclosure Agreement Requirement

Prior to commencing work, all Contractor personnel that may have access to PII or other sensitive information shall be required to sign a Non-Disclosure Agreement (NDA) and the DOJ IT Rules of Behavior. The Non-Disclosure Agreement:

(a) prohibits the Contractor from retaining or divulging any PII or other sensitive information, or derivatives therefrom, furnished by the Government or to which they may otherwise come in contact as a result of their performance of work under the contract/task order that is otherwise not publicly available, whether or not such information has been reduced to writing; and

(b) requires the Contractor to report any loss of control, compromise, unauthorized disclosure, or unauthorized acquisition of PII or other sensitive information to the component-level or headquarters Security Operations Center within one (1) hour of discovery.

The Contractor should maintain signed copies of the NDA for all employees as a record of compliance. The Contractor should also provide copies of each employee's signed NDA to the Contracting Officer before the employee may commence work under the contract/task order.

(4) Prohibition on Use of PII in Vendor Billing and Administrative Records

The Contractor's invoicing, billing, and other financial or administrative records or databases is not authorized to regularly store or include any sensitive PII or other confidential government information that is created, obtained, or provided during the performance of the contract without the written permission of the Senior Component Official for Privacy (SCOP). It is acceptable to list the names, titles and contact information for the Contracting Officer, COR, or other personnel associated with the administration of the contract in the invoices as needed.

(5) Reporting Actual or Suspected Data Breach

Contractors must report any actual or suspected breach of PII within one hour of discovery.[4] A "breach" is an incident or occurrence that involves the loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII or (2) an authorized user accesses or potentially accesses PII for an other than authorized purpose. The report of a breach must be made to DOJ. The Contractor must cooperate with DOJ's inquiry into the incident and efforts to minimize risks to DOJ or individuals, including remediating any harm to potential victims.

(a) The Contractor must develop and maintain an internal process by which its employees and Subcontractors are trained to identify and report the breach, consistent with DOJ Instruction 0900.00.01[5], Reporting and Response Procedures for a Breach of Personally Identifiable Information.

(b) The Contractor must report any such breach by its employees or Subcontractors to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000); Component-level Security Operations Center and Component-level Management Team, where appropriate; the COR; and the Contracting Officer within one (1) hour of the initial discovery.

(c) The Contractor must provide a written report to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000) within 24 hours of discovery of the breach by its employees or Subcontractors. The report must contain the following information:

(i) Narrative or detailed description of the events surrounding the suspected loss or compromise of information.[6] Date, time, and location of the incident.
(ii) Amount, type, and sensitivity of information that may have been lost or compromised, accessed without authorization, etc.
(iii) Contractor's assessment of the likelihood that the information was compromised or lost and the reasons behind the assessment.[7]
(iv) Names and classification of person(s) involved, including victim, Contractor employee/Subcontractor and any witnesses.
(v) Cause of the incident and whether the company's security plan was followed and, if not, which specific provisions were not followed.[8]
(vi) Actions that have been or will be taken to minimize damage and/or mitigate further compromise.
(vii) Recommendations to prevent similar situations in the future, including whether the security plan needs to be modified in any way and whether additional training may be required.

(d) The Contractor shall provide full access and cooperation for all activities determined by the Government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of sensitive information incidents.

(e) At the Government's discretion, Contractor employees or Subcontractor employees may be identified as no longer eligible to access PII or to work on that contract based on their actions related to the loss or compromise of PII.

(6) Victim Remediation

At DOJ's request, the Contractor is responsible for notifying victims and providing victim remediation services in the event of a breach of PII held by the Contractor, its agents, or its Subcontractors, under this contract. Victim

remediation services shall include at least 18 months of credit monitoring and, for serious or large incidents as determined by the Government, call center help desk services for the individuals whose PII was lost or compromised. When DOJ requests notification, the Department Chief Privacy and Civil Liberties Officer and SCOP will direct the Contractor on the method and content of such notification to be sent to individuals whose PII was breached. By performing this work, the Contractor agrees to full cooperation in the event of a breach. The Contractor should be self-insured to the extent necessary to handle any reasonably foreseeable breach, with another source of income, to fully cover the costs of breach response, including but not limited to victim remediation.

C. Government Records Training, Ownership, and Management

(1) Records Management Training and Compliance

(a) The Contractor must ensure that all employees and Subcontractors that have access to PII as well as to those involved in the creation, use, dissemination and/or destruction of PII take the *DOJ Records and Information Training for New Employees (RIM)* training course or another training approved by the Contracting Officer or COR. This training will be provided at the outset of the Subcontractor's/employee's work on the contract and every year thereafter. The Contractor shall maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required records management training.

(b) The Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records containing PII and those covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format, mode of transmission, or state of completion.

(2) Records Creation, Ownership, and Disposition

(a) The Contractor shall not create or maintain any records not specifically tied to or authorized by the contract using Government IT equipment and/or Government records or that contain Government Agency information. The Contractor shall certify, in writing, the appropriate disposition or return of all Government information at the conclusion of the contract or at a time otherwise specified in the contract. In accordance with 36 CFR 1222.32, the Contractor shall maintain and manage all Federal records created in the course of performing the contract in accordance with Federal law. Records may not be removed from the legal custody of DOJ or destroyed except in accordance with the provisions of the agency records schedules.

(b) Except as stated in the Performance Work Statement and, where applicable, the Contractor's Commercial License Agreement, the Government Agency owns the rights to all electronic information (electronic data, electronic information systems or electronic databases and all supporting documentation and associated metadata created as part of this contract. All deliverables (including all data and records) under the contract are the property of the U.S. Government and may be considered federal records, for which the Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein. The Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.

(c) The Contractor shall not retain, use, sell, disseminate, or dispose of any government data/records or deliverables without the express written permission of the Contracting Officer or Contracting Officer's Representative. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. § 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the Agency records schedules.

D. Data Privacy and Oversight

(1) Restrictions on Testing or Training Using Real Data Containing PII

The use of real data containing PII from any source for testing or training purposes is generally prohibited. The Contractor shall use synthetic or de-identified real data for testing or training whenever feasible.

(2) Requirements for Contractor IT Systems Hosting Government Data

The Contractor is required to obtain an Authority To Operate (ATO) for any IT environment owned or controlled by the Contractor or any Subcontractor on which Government data shall reside for the purposes of IT system development, design, data migration, testing, training, maintenance, use, or disposal.

(3) Requirement to Support Privacy Compliance

(a) If this contract requires the development, maintenance or administration of information technology[9], the Contractor shall support the completion of the Initial Privacy Assessment (IPA) document, if requested by Department personnel. An IPA is the first step in a process to identify potential privacy issues and mitigate privacy risks. The IPA asks basic questions to help components assess whether additional privacy protections may be needed in designing or implementing a project[10] to mitigate privacy risks, and whether compliance work may be needed. Upon review of the IPA, the OPCL determines whether a Privacy Impact Assessment (PIA) document and/or SORN, or modifications thereto, are required. The Contractor shall provide adequate support to complete the applicable risk assessment and PIA document in a timely manner, and shall ensure that project management plans and schedules include the IPA, PIA, and SORN (to the extent required) as milestones. Additional information on the privacy compliance process at DOJ, including IPAs, PIAs, and SORNs, is located on the DOJ OPCL website (https://dojnet.doj.gov/privacy/), including DOJ Order 0601, Privacy and Civil Liberties. The Privacy Impact Assessment Guidance and Template outline the requirements and format for the PIA.

(b) If the contract involves an IT system build or substantial development or changes to an IT system that may require privacy risk assessment and documentation, the Contractor shall provide adequate support to DOJ to ensure DOJ can complete any required assessment, and IPA, PIA, SORN, or other supporting documentation to support privacy compliance. The Contractor shall work with personnel from the program office, OPCL, the Office of the Chief Information Officer (OCIO), and the Office of Records Management and Policy to ensure that the privacy assessments and documentation are kept on schedule, that the answers to questions in the documents are thorough and complete, and that questions asked by the OPCL and other offices are answered in a timely fashion. The Contractor must ensure the completion of required PIAs and documentation of privacy controls consistent with federal law and standards, e.g. NIST 800-53, Rev. 5; and compliance with the Privacy Act of 1974, E-Government Act of 2002, Federal Information Security Modernization Act of 2014, and key OMB guidelines, e.g., OMB Circular A-130.

[1] “[T]he term ‘record’ means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, his education, financial transactions, medical history, and criminal or employment history and that contains his name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a finger or voice print or a photograph.” 5 U.S.C. § 552a(a)(4). “[T]he term ‘system of records’ means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.” 5 U.S.C. § 552a(a)(5).
[2] As stated in FAR 52.224-3 and Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource (2016), “’personally identifiable information’ means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual.” Regarding “sensitive PII,” “[t]he sensitivity level of the PII will depend on the context, including the purpose for which the PII is created, collected, used, processed, stored, maintained, disseminated, disclosed, or disposed. For example, the sensitivity level of a list of individuals’ names may depend on the source of the information, the other information associated with the list, the intended use of the information, the ways in which the information will be processed and shared, and the ability to access the information.” OMB Circular A-130, at App. II-2.
[3] The DOJ OPCL Resources page is available at https://www.justice.gov/opcl/resources.
[4] As stated in DOJ Instruction 0900, “Contractors must notify the Contracting Officer, the Contracting Officer’s Representative, and JSOC (or component-level SOC) within 1 hour of discovering any incidents, including breaches, consistent with this Instruction, guidance issued by the CPCLO, NIST standards and guidelines, and the US-CERT notification guidelines.”
[5] https://www.justice.gov/file/4336/download
[6] As stated in DOJ Instruction 0900, the description should include the type of information that constitutes PII; purpose for which PII is collected, maintained, and used; extent to which PII identifies a peculiarly vulnerable population; the determination of whether the information was properly encrypted or rendered partially or completely inaccessible by other means; format of PII (e.g., whether PII was structured or unstructured); length of time PII was exposed; any evidence confirming that PII is being misused or that it was never accessed.
[7] As stated in DOJ Instruction 0900, the report should include the nature of the cyber threat (*e.g.*, Advanced Persistent Threat, Zero Day Threat, data exfiltration) for cyber incidents.

[8] As stated in DOJ Instruction 0900, the report should include analysis on whether the data is accessible, usable, and intentionally targeted.
[9] As defined in 40 U.S.C. § 11101, the term “information technology” means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use (i) of that equipment or (ii) of that equipment to a significant extent in the performance of a service or the furnishing of a product; includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but does not include any equipment acquired by a federal contractor incidental to a federal contract.
[10] In this instance, the term “project” is used to scope the activities (e.g., creating, collecting, using, processing, storing, maintaining, disseminating, disclosing, or disposing of information) covered by an IPA. A project is intended to be technology-neutral, and may include an information system, a digital service, an information technology, a combination thereof, or some other activity that may create potential privacy issues or privacy risks that would benefit from an IPA. The scope of a project covered by an IPA is discretionary, but components should work with their SCOP and OPCL.

(End of Clause)

DOJ-08 Continuing Contract Performance During a Pandemic Influenza or other National Emergency (OCT 2007)

During a Pandemic or other emergency we understand that our contractor workforce will experience the same high levels of absenteeism as our federal employees. Although the Excusable Delays and Termination for Default clauses used in government contracts list epidemics and quarantine restrictions among the reasons to excuse delays in contract performance, we expect our contractors to make a reasonable effort to keep performance at an acceptable level during emergency periods.

The Office of Personnel Management (OPM) has provided guidance to federal managers and employees on the kinds of actions to be taken to ensure the continuity of operations during emergency periods. This guidance is also applicable to our contract workforce. Contractors are expected to have reasonable policies in place for continuing work performance, particularly those performing mission critical services, during a pandemic influenza or other emergency situation.
The types of actions a federal contractor should reasonably take to help ensure performance are:

- Encourage employees to get inoculations or follow other preventive measures as advised by the public health service.
- Contractors should cross-train workers as backup for all positions performing critical services. This is particularly important for work such as guard services where telework is not an option.
- Implement telework to the greatest extent possible in the workgroup so systems are in place to support successful remote work in an emergency.
- Communicate expectations to all employees regarding their roles and responsibilities in relation to remote work in the event of a pandemic health crisis or other emergency.
- Establish communication processes to notify employees of activation of this plan.
- Integrate pandemic health crisis response expectations into telework agreements.
- With the employee, assess requirements for working at home (supplies and equipment needed for an extended telework period). Security concerns should be considered in making equipment choices; agencies or contractors may wish to avoid use of employees' personal computers and provide them with PCs or laptops as appropriate.
- Determine how all employees who may telework will communicate with one another and with management to accomplish work.
- Practice telework regularly to ensure effectiveness.

- Make it clear that in emergency situations, employees must perform all duties assigned by management, even if they are outside usual or customary duties.

- Identify how time and attendance will be maintained.

It is the contractor's responsibility to advise the government contracting officer if they anticipate not being able to perform and to work with the Department to fill gaps as necessary. This means direct communication with the contracting officer or in his/her absence, another responsible person in the contracting office via telephone or email messages acknowledging the contractor’s notification. The incumbent contractor is responsible for assisting the Department in estimating the adverse impacts of nonperformance and to work diligently with the Department to develop a strategy for maintaining the continuity of operations.

The Department does reserve the right in such emergency situations to use federal employees. employees of other agencies, contract support from other existing contractors, or to enter into new contracts for critical support services. Any new contracting efforts would be acquired following the guidance in the Office of federal Procurement Policy issuance "Emergency Acquisitions", May, 2007 and Subpart 18.2. Emergency Acquisition Flexibilities, of the Federal Acquisition Regulations.

(End of Clause)

Section J - List of Attachments

Identifier	Title	Number of Pages
1	Business Management Questionnaire	3
2	Wage Determination 2015-5629, dated August 27, 2026, Revision 31, San Bernardino County for FCC Victorville	11

Section K - Representations, Certifications and Other Statements of Offerors

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

Provision	Title	Fill-ins (if applicable)
52.240-90 (DEV)	Security Prohibitions and Exclusions Representations and Certifications (DEVIATION NOV 2025)	

Section L - Instructions, Conditions and Notices to Offerors

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)		
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov		
Provision	Title	Fill-ins (if applicable)
52.204-7 (DEV)	System for Award Management-Registration (Nov 2024) (DEVIATION NOV 2025)	
52.212-1 (DEV)	Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023) (DEVIATION NOV 2025)	
2852.233-70	Protests Filed Directly with the Department of Justice (NOV 2020)	

Provisions By Full Text

Quote Submission Instructions/Evaluation and Award Methodology/SAM Registration/APEX Accelerators/FOIA

Funds are not presently available for this solicitation. No award will be made under this solicitation until funds are made available and confirmed in writing by the Contracting Officer. The Government reserves the right to cancel this solicitation at any time, either before or after quotes are received. In the event of cancellation, the Government shall have no obligation to reimburse any quoter for any costs incurred in connection with the preparation or submission of its quote.

Quotation Submission Requirements Instructions:
The information requested below must be submitted by contractors and received before the solicitation response date and time. If any of the following information is not received, the Contracting Officer may elect to deem quotes non-compliant or request the required information from one or any of the Contractors, whichever is most advantageous to the Government, at the discretion of the Contracting Officer.

Quotations shall be submitted in accordance with the "**Quotation Submission Instructions"** contained in **Section L** of the solicitation. Completed quotations, including Standard Form (SF) 1449 and all required supporting documentation, shall be submitted via **email** to **LaQueta Wheeler, Contracting Officer** at **LLWheeler@bop.gov** no later than the date and time in **Block 8** of the SF-1449.

Questions regarding this solicitation shall be submitted in writing via email no later than **Monday, November 16, 2026, at 10:00 AM CST**. Questions regarding the solicitation will not be accepted beyond this date.

Documentation to be submitted with Quote:
The quoter shall complete and submit the following requirements. Failure to submit the required documentation may result in the quotation being considered ineligible for award.

1. **Pricing Submission:** The Contractor shall provide pricing on the provided Standard Form (SF) 1449, including the base period and all option/performance periods.

2. **Business Questionnaire:** The Contractor shall complete and submit the attached Business Questionnaire, including company contact information, references, bank information, and any other requested business information.

1. **3. Pricing Licenses and Certifications:** The Contractor shall provide copies of all required licenses, permits, certifications, and registrations necessary to perform Food Waste Disposal Services.

4. Pricing roof of Insurance: The Contractor shall provide proof of current insurance coverage with its quotation. The successful awardee shall obtain and maintain any additional insurance coverage required for **contract** performance.

5. Letter of Compliance: The Contractor shall submit a signed letter on a company letterhead certifying compliance with all requirements of this solicitation.

All submitted documents shall be clear, legible, and unaltered.

Evaluation Award Methodology:
This acquisition will be procured in accordance with FAR Part 12 - Acquisition of Commercial Products and Commercial Services. The Government intends to make a single award to a quoter, pursuant to an affirmative determination of responsibility, whose quotation, conforming to requirements of the solicitation, determined to be the best value to the Government considering **price** and **past performance** history.

Price:
Price shall be evaluated utilizing the total aggregate pricing offered by the quoter (aggregate total of base year plus all option years).

Past Performance:
The Contractor Performance Assessment Reporting System (CPARS) at www.cpars.gov, the professional references submitted with the Contractor's quote, and/or any other relevant information available to the Contracting Officer may be used for past performance evaluation.

SAM Registration:
In accordance to **FAR 52.204-7, System for Award Management (SAM),** quoters must be actively registered as **"All Awards"** in the SAM at the time of quotation submission and prior to award. Quoters shall provide their **Unique Entity Identification (UEI)** with their quotation. Registration information can be found at: Sam.gov.

APEX Accelerator Assistance:
Vendors seeking assistance with SAM registration or federal contracting opportunities may contact their local APEX Accelerator. Additional information is available at: Apexaccelerators.us

The applicable North American Industrial Classification (NAICS) code for this requirement is **562111, Solid Waste Collection.** The associated small business size standard applies. All quoters shall ensure NAICS code **562111** is included in their SAM profile registration.

Freedom of Information Act:
The Freedom of Information Act (FOIA) and its amendments have resulted in an increasing number of requests to Federal Agencies for copies of quotes from other than Government sources. The quoter should identify information in its quote it believes should be withheld from these sources, on the basis it consists of "trade secrets and commercial or financial information obtained from a person and privileged or confidential" (exemption (b)(4) of the (FOIA). This identification will assist in the decision by a responsible federal official to disclose or withhold the requested information.

If a quoter considers elements of its quote to be exempt under FOIA, ensure the following notice is annotated on the title page of the quote: “Elements of this document, as identified on individual pages, are considered by the submitter to be privileged or confidential trade secrets or commercial or financial information not subject to mandatory disclosure under the Freedom of information Act. Material considered privileged or confidential on this basis is contained on pages **____.”**

The quote must annotate each individual item it considers privileged or confidential under the FOIA exemption with the following notice: “The data or information is considered confidential or privileged, and not subject to mandatory disclosure under the FOIA.”

All information in an offeror's quote not designated may be subject to automatic public disclosure if it is requested under the FOIA. It must be emphasized that under the FOIA no information is automatically exempt from public disclosure. However, no disclosures will be made without careful evaluation, giving due regard to the need for safeguarding material considered privileged or confidential by the quoter. It is the Department of Justice policy to withhold whenever possible material that is genuinely privileged or confidential.

Section M - Evaluation Factors for Award

Provisions By Reference

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)		
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Provision	Title	Fill-ins (if applicable)
52.212-2 (DEV)	Evaluation-Commercial Products and Commercial Services (Nov 2021) (DEVIATION NOV 2025)	Evaluation Factors : "Price and Past Performance"
52.217-5 (DEV)	Evaluation of Options (July 1990) (DEVIATION AUG 2025)	

Attachment 1: Business Management Questionnaire

(A). **Provide the estimated percentage breakdown of your business's total work performed and distributed among the following categories: commercial contracts, prime government, and subcontracts.**

Commercial: _____ Percentage **Prime**: _____ Percentage **Subcontracting**: _____ Percentage

(B). **List your three (3) most recent contracts and/or Blanket Purchase Agreements (BPA) awarded to your business that are similar in scope to the services required under this solicitation:**

(1).

(a). Business Reference for Verification - Name and Address: _____

_____

_____

(b). Type of Work: _____

(c). Type of Award: **[_____] Contract [_____] BPA**

(d). Contract/BPA Number: _____

(e). Amount of Contract: _____

(f). Contract Status: **[_____] Active [_____] Complete**

(g). Point of Contact (POC): _____

(h). POC's Telephone Number: _____

(i). POC's Email: _____

(2).

(a). Business Reference for Verification - Name and Address: _____

_____

_____

(b). Type of Work: _____

(c). Type of Award: **[_____] Contract [_____] BPA**

(d). Contract/BPA Number: _____

(e). Amount of Contract: _____

(f). Contract Status: **[_____] Active [_____] Complete**

(g). POC: _____

(h). POC's Telephone Number: _____

(i). POC's Email: _____

(3).

(a). Business Reference for Verification - Name and Address: _____

_____

_____

(b). Type of Work: _____

(c). Type of Award: **[_____] Contract [_____] BPA**

(d). Contract/BPA Number: _____

(e). Amount of Contract: _____

(f). Contract Status: **[_____] Active [_____] Complete**

(g). POC: _____

(h). POC's Telephone Number: _____

(i). POC's Email: _____

Attachment 1: Business Management Questionnaire

(C). **(a). Bank Reference for Verification - Branch Name and Address:** _____

_____

_____

(b). Bank POC: _____

(c). POC's Telephone Number: _____

(d). POC's Email: _____

(D). Provide the estimated total percentage of work your business will perform with your own employees under the resulting contract and/or BPA.

_____ **Percentage (%)**

At year-end, employers must issue IRS Form W-2 to report wages paid to employees. **Issuing Form 1099 in lieu of a W-2 for individuals performing contract and/or BPA services may be considered subcontracting.**

Provide the estimated total percentage of work your business will perform utilizing independent contractors (non-employees).

_____ **Percentage (%)**

At year-end, employers must issue IRS Form 1099 to report compensation paid to independent contractors.

Worker Classification and Compliance with FAR 52.219-14

Please be advised that contractors are sometimes required to make determinations regarding the proper classification of workers who provide products and/or services under a given requirement. It is essential that the status of each worker - as either an independent contractor or an employee - be accurately assessed to ensure compliance with applicable tax laws and to allow both businesses and workers to fulfill their tax obligations in a timely manner.

While either classification may be valid depending on the nature of the work, incorrectly classifying an employee as an independent contractor without a reasonable basis may result in the contractor being held liable for employment taxes associated with that worker. For additional guidance on worker classification, please consult the IRS website at www.irs.gov.

Furthermore, as a small business concern, please note that misclassification of employees may result in noncompliance with FAR 52.219-14, Limitations on Subcontracting, which state that at least 50% of the cost of contract performance incurred for personnel must be expended to employees of the concern. **Failure to meet this requirement may jeopardize your eligibility for award under the applicable small business program and may constitute grounds of corrective action**.

Please provide your business information below for BPA and/or Contract Administration purposes, should an award be made as a result of this solicitation:

(E). **(a). Legal Business Name & Physical Address:** _____

_____

_____

(b). Unique Entity Identifier (UEI): _____

(c). Tax Identification Number: _____

(d). Federal Supply Schedule (FSS) Contract Number (if applicable): _____

(e). FSS Contract Expiration Date: _____

(f). Business Size & Socioeconomic Status: _____

Point of Contact for Operational Matters:

(g). Name _____

(h). Title: _____

(i). Phone: _____

(j). Email: _____

Attachment 1: Business Management Questionnaire

Point of Contact for Administrative Matters:

(k). Name _____

(l). Title: _____

(m). Phone: _____

(n). Email: _____

Point of Contact for Billing/Invoicing Matters:

(o). Name _____

(p). Title: _____

(q). Phone: _____

(r). Email: _____

Please do not alter the format of this document. Utilize this version only.

Thank you for your time and effort in participating in the solicitation.

Attachment 2: Wage Determination

"

REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor	U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director Division of Wage Determinations	Wage Determination No.: 2015-5629 Revision No.: 31 Date Of Last Revision: 8/27/2026

State: California

Area: California Counties of Riverside and San Bernardino

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		21.30
01012 - Accounting Clerk II		23.90
01013 - Accounting Clerk III		26.74
01020 - Administrative Assistant		36.74
01035 - Court Reporter		56.85
01041 - Customer Service Representative I		18.52
01042 - Customer Service Representative II		20.21
01043 - Customer Service Representative III		22.67
01051 - Data Entry Operator I		20.36
01052 - Data Entry Operator II		22.22
01060 - Dispatcher, Motor Vehicle		25.00
01070 - Document Preparation Clerk		21.92
01090 - Duplicating Machine Operator		21.92
01111 - General Clerk I		18.17
01112 - General Clerk II		19.82
01113 - General Clerk III		22.24
01120 - Housing Referral Assistant		26.95
01141 - Messenger Courier		19.37
01191 - Order Clerk I		20.56
01192 - Order Clerk II		22.43
01261 - Personnel Assistant (Employment) I		22.45
01262 - Personnel Assistant (Employment) II		25.12
01263 - Personnel Assistant (Employment) III		28.01
01270 - Production Control Clerk		27.23
01290 - Rental Clerk		20.53
01300 - Scheduler, Maintenance		21.62

01311 - Secretary I	21.62
01312 - Secretary II	24.18
01313 - Secretary III	26.95
01320 - Service Order Dispatcher	22.35
01410 - Supply Technician	36.74
01420 - Survey Worker	24.25
01460 - Switchboard Operator/Receptionist	20.10
01531 - Travel Clerk I	20.12
01532 - Travel Clerk II	22.58
01533 - Travel Clerk III	25.26
01611 - Word Processor I	19.39
01612 - Word Processor II	21.77
01613 - Word Processor III	24.35
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	30.14
05010 - Automotive Electrician	29.08
05040 - Automotive Glass Installer	27.32
05070 - Automotive Worker	27.32
05110 - Mobile Equipment Servicer	23.64
05130 - Motor Equipment Metal Mechanic	30.87
05160 - Motor Equipment Metal Worker	27.32
05190 - Motor Vehicle Mechanic	30.87
05220 - Motor Vehicle Mechanic Helper	22.69
05250 - Motor Vehicle Upholstery Worker	25.52
05280 - Motor Vehicle Wrecker	27.32
05310 - Painter, Automotive	29.08
05340 - Radiator Repair Specialist	27.32
05370 - Tire Repairer	18.37
05400 - Transmission Repair Specialist	30.87
07000 - Food Preparation And Service Occupations	
07010 - Baker	20.09
07041 - Cook I	21.38
07042 - Cook II	24.86
07070 - Dishwasher	17.65
07130 - Food Service Worker	18.47
07210 - Meat Cutter	21.57
07260 - Waiter/Waitress	16.73
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	23.23
09040 - Furniture Handler	15.55
09080 - Furniture Refinisher	22.36
09090 - Furniture Refinisher Helper	17.45
09110 - Furniture Repairer, Minor	19.62
09130 - Upholsterer	23.43
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.42
11060 - Elevator Operator	19.64
11090 - Gardener	23.85
11122 - Housekeeping Aide	19.64
11150 - Janitor	19.64
11210 - Laborer, Grounds Maintenance	20.99
11240 - Maid or Houseman	18.84
11260 - Pruner	20.04
11270 - Tractor Operator	22.88
11330 - Trail Maintenance Worker	20.99
11360 - Window Cleaner	20.57
12000 - Health Occupations	
12010 - Ambulance Driver	20.92
12011 - Breath Alcohol Technician	33.19
12012 - Certified Occupational Therapist Assistant	38.50

12015 - Certified Physical Therapist Assistant		38.58
12020 - Dental Assistant		23.57
12025 - Dental Hygienist		52.42
12030 - EKG Technician		36.85
12035 - Electroneurodiagnostic Technologist		36.85
12040 - Emergency Medical Technician		20.92
12071 - Licensed Practical Nurse I		29.66
12072 - Licensed Practical Nurse II		33.19
12073 - Licensed Practical Nurse III		37.01
12100 - Medical Assistant		22.45
12130 - Medical Laboratory Technician		30.67
12160 - Medical Record Clerk		25.28
12190 - Medical Record Technician		28.28
12195 - Medical Transcriptionist		22.89
12210 - Nuclear Medicine Technologist		71.34
12221 - Nursing Assistant I		16.21
12222 - Nursing Assistant II		18.23
12223 - Nursing Assistant III		19.89
12224 - Nursing Assistant IV		22.32
12235 - Optical Dispenser		26.99
12236 - Optical Technician		24.11
12250 - Pharmacy Technician		24.17
12280 - Phlebotomist		24.75
12305 - Radiologic Technologist		50.57
12311 - Registered Nurse I		36.30
12312 - Registered Nurse II		44.40
12313 - Registered Nurse II, Specialist		44.40
12314 - Registered Nurse III		53.73
12315 - Registered Nurse III, Anesthetist		53.73
12316 - Registered Nurse IV		64.40
12317 - Scheduler (Drug and Alcohol Testing)		41.11
12320 - Substance Abuse Treatment Counselor		29.26
13000 - Information And Arts Occupations		
13011 - Exhibits Specialist I		26.28
13012 - Exhibits Specialist II		32.56
13013 - Exhibits Specialist III		40.02
13041 - Illustrator I		28.69
13042 - Illustrator II		35.54
13043 - Illustrator III		43.47
13047 - Librarian		36.82
13050 - Library Aide/Clerk		21.41
13054 - Library Information Technology Systems Administrator		33.24
13058 - Library Technician		27.17
13061 - Media Specialist I		23.99
13062 - Media Specialist II		26.84
13063 - Media Specialist III		29.91
13071 - Photographer I		21.02
13072 - Photographer II		23.52
13073 - Photographer III		29.13
13074 - Photographer IV		35.64
13075 - Photographer V		43.13
13090 - Technical Order Library Clerk		26.87
13110 - Video Teleconference Technician		28.13
14000 - Information Technology Occupations		
14041 - Computer Operator I		24.36
14042 - Computer Operator II		27.25
14043 - Computer Operator III		30.39
14044 - Computer Operator IV		33.76
14045 - Computer Operator V		37.39
14071 - Computer Programmer I	(see 1)	
14072 - Computer Programmer II	(see 1)	
14073 - Computer Programmer III	(see 1)	

14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		24.36
14160 - Personal Computer Support Technician		33.76
14170 - System Support Specialist		37.39
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		38.20
15020 - Aircrew Training Devices Instructor (Rated)		46.23
15030 - Air Crew Training Devices Instructor (Pilot)		55.41
15050 - Computer Based Training Specialist / Instructor		38.20
15060 - Educational Technologist		53.91
15070 - Flight Instructor (Pilot)		55.41
15080 - Graphic Artist		31.68
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		55.17
15086 - Maintenance Test Pilot, Rotary Wing		55.17
15088 - Non-Maintenance Test/Co-Pilot		55.17
15090 - Technical Instructor		25.33
15095 - Technical Instructor/Course Developer		30.98
15110 - Test Proctor		20.44
15120 - Tutor		20.44
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		18.78
16030 - Counter Attendant		18.78
16040 - Dry Cleaner		21.47
16070 - Finisher, Flatwork, Machine		18.78
16090 - Presser, Hand		18.78
16110 - Presser, Machine, Drycleaning		18.78
16130 - Presser, Machine, Shirts		18.78
16160 - Presser, Machine, Wearing Apparel, Laundry		18.78
16190 - Sewing Machine Operator		22.35
16220 - Tailor		23.25
16250 - Washer, Machine		19.68
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		26.08
19040 - Tool And Die Maker		31.13
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		24.76
21030 - Material Coordinator		27.23
21040 - Material Expediter		27.23
21050 - Material Handling Laborer		22.15
21071 - Order Filler		20.77
21080 - Production Line Worker (Food Processing)		24.76
21110 - Shipping Packer		20.74
21130 - Shipping/Receiving Clerk		20.74
21140 - Store Worker I		21.87
21150 - Stock Clerk		25.13
21210 - Tools And Parts Attendant		24.76
21410 - Warehouse Specialist		24.76
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		41.47
23019 - Aircraft Logs and Records Technician		32.37
23021 - Aircraft Mechanic I		39.15
23022 - Aircraft Mechanic II		41.47
23023 - Aircraft Mechanic III		43.08
23040 - Aircraft Mechanic Helper		28.78

23050 - Aircraft, Painter	36.88
23060 - Aircraft Servicer	32.37
23070 - Aircraft Survival Flight Equipment Technician	36.88
23080 - Aircraft Worker	34.65
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	34.65
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	39.15
23110 - Appliance Mechanic	27.65
23120 - Bicycle Repairer	21.32
23125 - Cable Splicer	58.62
23130 - Carpenter, Maintenance	34.08
23140 - Carpet Layer	25.73
23160 - Electrician, Maintenance	35.56
23181 - Electronics Technician Maintenance I	32.96
23182 - Electronics Technician Maintenance II	35.08
23183 - Electronics Technician Maintenance III	37.24
23260 - Fabric Worker	29.55
23290 - Fire Alarm System Mechanic	31.03
23310 - Fire Extinguisher Repairer	27.38
23311 - Fuel Distribution System Mechanic	42.42
23312 - Fuel Distribution System Operator	32.44
23370 - General Maintenance Worker	26.16
23380 - Ground Support Equipment Mechanic	39.15
23381 - Ground Support Equipment Servicer	32.37
23382 - Ground Support Equipment Worker	34.65
23391 - Gunsmith I	27.38
23392 - Gunsmith II	31.64
23393 - Gunsmith III	35.75
23410 - Heating, Ventilation And Air-Conditioning Mechanic	30.92
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	32.75
23430 - Heavy Equipment Mechanic	36.56
23440 - Heavy Equipment Operator	39.51
23460 - Instrument Mechanic	40.96
23465 - Laboratory/Shelter Mechanic	33.67
23470 - Laborer	22.15
23510 - Locksmith	30.25
23530 - Machinery Maintenance Mechanic	35.19
23550 - Machinist, Maintenance	24.78
23580 - Maintenance Trades Helper	20.23
23591 - Metrology Technician I	40.96
23592 - Metrology Technician II	42.99
23593 - Metrology Technician III	44.64
23640 - Millwright	33.60
23710 - Office Appliance Repairer	22.67
23760 - Painter, Maintenance	23.51
23790 - Pipefitter, Maintenance	32.62
23810 - Plumber, Maintenance	30.73
23820 - Pneudraulic Systems Mechanic	35.75
23850 - Rigger	36.12
23870 - Scale Mechanic	31.64
23890 - Sheet-Metal Worker, Maintenance	34.39
23910 - Small Engine Mechanic	24.56
23931 - Telecommunications Mechanic I	34.99
23932 - Telecommunications Mechanic II	37.06
23950 - Telephone Lineman	39.51
23960 - Welder, Combination, Maintenance	25.02
23965 - Well Driller	37.50
23970 - Woodcraft Worker	35.75
23980 - Woodworker	27.38

24000 - Personal Needs Occupations

24550 - Case Manager		23.26
24570 - Child Care Attendant		19.33
24580 - Child Care Center Clerk		24.12
24610 - Chore Aide		16.50
24620 - Family Readiness And Support Services Coordinator		23.26
24630 - Homemaker		23.26
25000 - Plant And System Operations Occupations		
25010 - Boiler Tender		41.69
25040 - Sewage Plant Operator		39.80
25070 - Stationary Engineer		41.69
25190 - Ventilation Equipment Tender		28.67
25210 - Water Treatment Plant Operator		39.80
27000 - Protective Service Occupations		
27004 - Alarm Monitor		37.15
27007 - Baggage Inspector		18.31
27008 - Corrections Officer		45.54
27010 - Court Security Officer		41.80
27030 - Detection Dog Handler		20.48
27040 - Detention Officer		45.54
27070 - Firefighter		38.06
27101 - Guard I		18.31
27102 - Guard II		20.48
27131 - Police Officer I		46.22
27132 - Police Officer II		51.37
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		19.21
28042 - Carnival Equipment Repairer		20.56
28043 - Carnival Worker		16.82
28210 - Gate Attendant/Gate Tender		22.28
28310 - Lifeguard		18.83
28350 - Park Attendant (Aide)		24.93
28510 - Recreation Aide/Health Facility Attendant		18.20
28515 - Recreation Specialist		30.88
28630 - Sports Official		19.86
28690 - Swimming Pool Operator		24.05
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		35.30
29020 - Hatch Tender		35.30
29030 - Line Handler		35.30
29041 - Stevedore I		32.97
29042 - Stevedore II		37.57
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	54.25
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	37.41
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	41.19
30021 - Archeological Technician I		24.64
30022 - Archeological Technician II		27.72
30023 - Archeological Technician III		34.21
30030 - Cartographic Technician		34.35
30040 - Civil Engineering Technician		38.80
30051 - Cryogenic Technician I		34.20
30052 - Cryogenic Technician II		37.77
30061 - Drafter/CAD Operator I		24.64
30062 - Drafter/CAD Operator II		27.72
30063 - Drafter/CAD Operator III		30.79
30064 - Drafter/CAD Operator IV		37.88

30081 - Engineering Technician I		20.57
30082 - Engineering Technician II		23.09
30083 - Engineering Technician III		25.82
30084 - Engineering Technician IV		31.99
30085 - Engineering Technician V		39.12
30086 - Engineering Technician VI		47.33
30090 - Environmental Technician		26.89
30095 - Evidence Control Specialist		30.89
30210 - Laboratory Technician		26.25
30221 - Latent Fingerprint Technician I		35.84
30222 - Latent Fingerprint Technician II		39.58
30240 - Mathematical Technician		41.04
30361 - Paralegal/Legal Assistant I		23.85
30362 - Paralegal/Legal Assistant II		29.56
30363 - Paralegal/Legal Assistant III		36.15
30364 - Paralegal/Legal Assistant IV		43.75
30375 - Petroleum Supply Specialist		37.77
30390 - Photo-Optics Technician		33.63
30395 - Radiation Control Technician		37.77
30461 - Technical Writer I		33.30
30462 - Technical Writer II		40.73
30463 - Technical Writer III		49.27
30491 - Unexploded Ordnance (UXO) Technician I		34.48
30492 - Unexploded Ordnance (UXO) Technician II		41.72
30493 - Unexploded Ordnance (UXO) Technician III		50.00
30494 - Unexploded (UXO) Safety Escort		34.48
30495 - Unexploded (UXO) Sweep Personnel		34.48
30501 - Weather Forecaster I		34.20
30502 - Weather Forecaster II		41.61
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	30.79
30621 - Weather Observer, Senior	(see 2)	33.39
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot		41.72
31020 - Bus Aide		22.32
31030 - Bus Driver		28.19
31043 - Driver Courier		21.02
31260 - Parking and Lot Attendant		16.84
31290 - Shuttle Bus Driver		18.74
31310 - Taxi Driver		14.93
31361 - Truckdriver, Light		21.90
31362 - Truckdriver, Medium		23.64
31363 - Truckdriver, Heavy		29.17
31364 - Truckdriver, Tractor-Trailer		29.17
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist		20.34
99030 - Cashier		17.16
99050 - Desk Clerk		17.81
99095 - Embalmer		33.96
99130 - Flight Follower		34.48
99251 - Laboratory Animal Caretaker I		20.30
99252 - Laboratory Animal Caretaker II		21.75
99260 - Marketing Analyst		34.47
99310 - Mortician		33.96
99410 - Pest Controller		22.07
99510 - Photofinishing Worker		22.64
99710 - Recycling Laborer		31.19
99711 - Recycling Specialist		36.94
99730 - Refuse Collector		29.78
99810 - Sales Clerk		17.66
99820 - School Crossing Guard		19.83
99830 - Survey Party Chief		47.18
99831 - Surveying Aide		24.94

99832 - Surveying Technician	34.10
99840 - Vending Machine Attendant	18.57
99841 - Vending Machine Repairer	23.28
99842 - Vending Machine Repairer Helper	18.57

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: $5.92 per hour, up to 40 hours per week, or $236.80 per week or $1,026.13 per month

HEALTH & WELFARE EO 13706: $5.42 per hour, up to 40 hours per week, or $216.80 per week, or $939.46 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least $27.63 per hour (or at least $684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job

families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

    (1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

    (2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

    (3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

    (4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract

(either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However, in those instances where the uniforms furnished are made of """"wash and wear"""" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the """"Service Contract Act Directory of Occupations"""", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).

2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the """"Service Contract Act Directory of Occupations"""" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."""